

Court No. - 39

Case :- WRIT - C No. - 36539 of 2018

Petitioner :- Gopal Krishna Chaturvedi

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Anjani Kumar Dubey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar,J.

Hon'ble Rajiv Joshi,J.

Heard Sri Anjani Kumar Dubey, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondents no.2 & 3 and the learned Standing Counsel for the respondents no.1, 4 & 5.

The present writ petition has been filed seeking quashing of the recovery citation dated 16.07.2018 issued by the respondent no.5, Tehsildar, Tehsil Sadar Kannauj, District Kannauj whereby a sum of Rs.3,03,881/- is sought to be recovered from the petitioner as arrears of electricity bill.

The contention of the counsel for the petitioner is that he has given an application to the Electricity Department for disconnection of electricity but in spite of that the Electricity Department used to send bills, therefore the recovery is bad.

Learned counsel for the Respondent-Electricity Department, on the other hand, submitted that if the petitioner disputes the electricity bill, he has a remedy by filing his objection before the respondent no.3, Executive Engineer, Dakshinanchal Vidyut Vitran Nigam, Kannauj as per the provisions of Para 6.5 of the Electricity Supply Code, 2005.

We have considered the rival submissions of the learned counsel for the parties and perused the documents on records.

In our opinion, if the petitioner is disputing the electricity bill issued by the Electricity Department, he has a remedy by filing his objections before the respondent no.3 in terms of paragraph 6.5 of the U.P. Electricity Supply Code, 2005.

In the above facts and circumstances, this petition is disposed of finally leaving it open to the petitioner to file objection before the respondent no.3, Executive Engineer, Dakshinanchal Vidyut Vitran Nigam, Kannauj as per Para 6.5 of the Electricity Supply Code, 2005. In case any such objection is filed by the petitioner within two weeks from today alongwith certified copy of this

order, the respondent no.3 shall decide the same in accordance with law expeditiously preferably within two weeks thereafter. Till the objection of the petitioner is decided, no coercive action shall be taken against him in pursuance of the impugned recovery citation.

Order Date :- 1.11.2018

N Tiwari